

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of March 1, 2024 (the "Effective Date") by and between Northwind Analytics, Inc., a Delaware corporation ("Provider"), and Orion Freight Holdings, LLC, a Washington limited liability company ("Customer").

1. SERVICES

1.1 Provider shall perform the services described in one or more statements of work executed by the parties and referencing this Agreement (each, an "SOW"). Each SOW is incorporated into this Agreement by reference.

1.2 In the event of a conflict between this Agreement and any SOW, this Agreement controls except where the SOW expressly states that it supersedes a specified section of this Agreement.

2. FEES AND PAYMENT

2.1 Customer shall pay the fees set forth in each SOW. Unless an SOW states otherwise, fees are invoiced monthly in arrears and are due within thirty (30) days of invoice date.

2.2 Fees paid in advance for services not yet performed are held as a prepaid balance and are applied against subsequent invoices.

2.3 Customer shall reimburse Provider for pre-approved travel expenses at cost, without markup, supported by receipts.

3. TERM

3.1 The initial term of this Agreement begins on the Effective Date and continues for thirty-six (36) months (the "Initial Term"), and renews automatically for successive twelve (12) month periods unless either party gives written notice of non-renewal at least ninety (90) (90) days before the end of the then-current term.

11. TERMINATION

11.1 Termination for Convenience. Either party may terminate this Agreement or any individual SOW for convenience upon sixty (60) days' prior written notice to the other party.

11.2 Termination for Cause. Either party may terminate this Agreement immediately upon written notice if the other party commits a material breach that remains uncured for fifteen (15) days after written notice describing the breach in reasonable detail.

11.3 Effect of Termination. Upon any termination, Customer shall pay Provider for all services performed through the effective date of termination. Provider shall refund any prepaid fees attributable to services not performed as of the effective date of termination, except that no refund is owed where Provider terminates for Customer's uncured material breach.

11.4 Survival. Sections 2 (Fees and Payment), 8 (Confidentiality), 12 (Limitation of Liability) and this Section 11.4 survive termination of this Agreement.

12. LIMITATION OF LIABILITY

12.1 Neither party's aggregate liability arising out of or related to this Agreement exceeds the total fees paid or payable by Customer under the applicable SOW during the twelve (12) months preceding the event giving rise to the claim.

12.2 Neither party is liable for lost profits, lost revenue, or any indirect, incidental, consequential, special, or punitive damages, even if advised of the possibility of such damages. The limitations in this Section 12 do not apply to a party's indemnification obligations under Section 9 or to a breach of Section 8 (Confidentiality).

13. GOVERNING LAW

13.1 This Agreement is governed by the laws of the State of Washington, without regard to its conflict of laws principles. The exclusive venue for any dispute is the state or federal courts located in King County, Washington.

14. ENTIRE AGREEMENT; AMENDMENT

14.1 This Agreement, together with all SOWs, constitutes the entire agreement of the parties and supersedes all prior proposals and understandings. No amendment is effective unless in writing and signed by an authorized representative of each party.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.